

26STCV15214 26STCV15214

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-18

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Case Number: 26STCV15214 Hearing Date: September 18, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 18, 2026 TRIAL

DATE: Not set.

CASE: Tejas v. Wilshire Law Firm, P.L.C.

CASE

NO.: 26STCV15214

MOTION TO

COMPEL ARBITRATION

MOVING PARTY/PARTIES: Defendant Wilshire Law Firm, P.L.C.

RESPONDING PARTY/PARTIES: Plaintiff Margarita

Tejas

PROOF OF SERVICE:

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Plaintiff addresses the merits of

Defendant's motion, and thereby waived any procedural objections. (See *In re Marriage of Falcone* (2008)

164 Cal.App.4th 814, 826.)

CASE HISTORY:

May 13, 2026: Complaint filed.

STATEMENT OF MATERIAL FACTS AND/OR
PROCEEDINGS:

Plaintiff Margarita Tejas ("Plaintiff") sued her former employer, Defendant Wilshire Law Firm, P.L.C. ("Defendant"), for employment claims. Defendant moves to compel Plaintiff to arbitrate her claims. Plaintiff opposes the motion.

TENTATIVE RULING:

Defendants' motion to compel arbitration is GRANTED.

Moving party to give notice.

DISCUSSION:

The moving party on a petition to compel arbitration "bears the burden of proving the existence of a valid arbitration agreement by a preponderance of the evidence, while a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. The trial court sits as the trier of fact, weighing all the affidavits, declarations, and other documentary evidence, and any oral testimony the court may receive at its discretion, to reach a final determination." (Ruiz v. Moss Bros. Auto Group, Inc. (2014) 232 Cal.App.4th 836, 842, internal quotations and citations omitted.)

Defendant advances an arbitration agreement that Plaintiff signed when Plaintiff worked for Defendant. Plaintiff does not dispute that Plaintiff signed the agreement. The arbitration agreement provides that Plaintiff and Defendant agree to arbitrate "any legal dispute, past, present or future, arising out of or related to [Plaintiff's]

application for employment, employment with, and/or termination of employment with [Defendant]” (Declaration of Andrew A. Servais in Support of Motion to Compel Arbitration, Exhibit 1.) Defendant therefore meets its burden to show that the parties entered into an agreement to arbitrate their claims.

Defendant

argues that the Ending

Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021, which became law on March 3, 2022, does not bar arbitration of Plaintiff’s claims. The

arbitration agreement Plaintiff signed specifies that the Federal Arbitration Act governs. (Declaration of Andrew A. Servais in Support of Motion to Compel Arbitration, Exhibit 1.) A choice of law provision in an arbitration agreement is enforceable. (See *Coopers & Lybrand v. Superior Court* (1989) 212 Cal.App.3d 524, 538.) As such, the Federal Arbitration Act applies.

The Ending Forced Arbitration of Sexual Assault and Sexual Harassment Act of 2021 amends the Federal Arbitration Act to provide, “at the election of the person alleging conduct constituting a sexual harassment dispute or sexual assault dispute, or the named representative of a class or in a collective action alleging such conduct, no predispute arbitration agreement . . . shall be valid or enforceable with respect to a case which is filed under Federal, Tribal, or State law and relates to the sexual assault dispute or the sexual harassment dispute.” (9

U.S.C. § 402(a).) For purposes of this law, a sexual assault dispute is “a dispute involving a nonconsensual sexual act or sexual contact . . . , including when the victim lacks capacity to consent . . . ,” and a sexual harassment dispute is “a dispute relating to conduct that is . . . alleged to constitute sexual harassment under applicable Federal, Tribal, or State law. (9 U.S.C.

§ 401(3)-(4).) However, as Plaintiff

points out, the arbitration agreement provides that “[t]he Arbitrator, and not any court, shall have exclusive authority to resolve any dispute relating to the validity, applicability, enforceability, unconscionability, or waiver” of the arbitration agreement. (Declaration of Andrew A. Servais in

Support of Motion to Compel Arbitration, Exhibit 1.) Thus, Plaintiff and Defendant delegated the issue of the enforceability of the agreement to the arbitrator. (See *Hartley v. Superior Court* (2011)

196 Cal.App.4th 1249, 1258.) Defendant must raise this argument in arbitration.

Accordingly,

Defendant's motion to compel arbitration is GRANTED. This case is stayed pending arbitration.

Moving

party to give notice.

IT

IS SO ORDERED.

Dated: September 18, 2026 _____

Rolf

M. Treu

Judge

of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.